

24CHCV00713 24CHCV00713

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DEFENDANT SANDRA YVONNE LEVENTHAL'S MOTION TO DISMISS
PLAINTIFF DAVID GALICIA MARTINEZ'S CLAIMS FOR FAILURE TO PROSECUTE AND FAILURE
TO APPEAR FOR DEPOSITION

Motion filed on April 2, 2026.

MOVING PARTY: Defendant Sandra Yvonne Leventhal.

RESPONDING PARTY: None.

RELIEF REQUESTED: Defendant seeks dismissal of Plaintiff
David Galicia Martinez's claims for failure to prosecute and failure to appear
for deposition.

RULING: Denied.

BACKGROUND

On March 6, 2024, Plaintiffs Kenneth D. Alarcon and David
Galicia Martinez (Martinez) filed this action against Defendant Sandra Yvonne
Leventhal (Defendant). Defendant filed her answer on June 25, 2024. Defendant
filed this motion on April 2, 2026, supported by the declaration of Kristyn J.

Mintesnot and a proposed order. No opposition was timely filed. Plaintiffs' counsel's motion to be relieved as counsel was granted on April 17, 2026. The order granting relief was filed on May 5, 2026, and proof of service of that order was filed on May 7, 2026. The Final Status Conference is set for October 30, 2026. Trial is set for November 9, 2026.

DISCUSSION

Dismissal for Delay in Prosecution

Code of Civil Procedure section 583.410, subdivision (a) provides that "[t]he court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." Section 583.410, subdivision (b) provides that dismissal "shall be pursuant to the procedure and in accordance with the criteria prescribed by rules adopted by the Judicial Council." Section 583.420, subdivision (a) provides that the Court "may not dismiss an action pursuant to this article for delay in prosecution except after" one of the statutory conditions has occurred. As relevant here, those conditions include that "[s]ervice is not made within two years after the action is commenced against the defendant," or that "[t]he action is not brought to trial" within "[t]hree years after the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B)," or within "[t]wo years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice." (Code Civ. Proc., § 583.420, subd. (a)(1), (a)(2)(A), (a)(2)(B).) In exercising discretion, the Court may consider the factors in California Rules of Court, rule 3.1342, including diligence in pursuing discovery, delays attributable to either party, and whether the interests of justice are best served by dismissal or trial.

Here, Defendant was personally served on May 6, 2024, proof of service was filed on May 13, 2024, and Defendant answered on June 25, 2024. Dismissal is not supported by failure to serve within two years. (Code Civ. Proc., § 583.420, subd. (a)(1).) The complaint was filed on March 6, 2024, and trial is currently set for November 9, 2026. Dismissal is not supported by failure to bring the action to trial within three years. (Code Civ. Proc., § 583.420, subd. (a)(2)(A).) To the extent Defendant relies on the two-year trial

condition, Defendant's showing is primarily based on Martinez's alleged failure to appear for deposition. For the reasons stated below, the motion is denied.

Terminating Sanctions

Code of Civil Procedure section 2023.010 provides that misuses of the discovery process include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery." (Code Civ. Proc., § 2023.010, subds. (d), (g).) Section 2023.030 provides that the Court may impose terminating sanctions "[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title." A terminating sanction may include "[a]n order dismissing the action, or any part of the action, of that party." (Code Civ. Proc., § 2023.030, subd. (d)(3).) Terminating sanctions are severe sanctions and are generally used only where the record shows willful discovery noncompliance and lesser sanctions would not bring about compliance. (*R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 495-497 (*R.S. Creative, Inc.*).)

Here, Defendant's asserted basis for dismissal is Martinez's alleged failure to appear for deposition. Defendant states that Martinez's deposition was noticed for June 20, 2025, September 3, 2025, October 27, 2025, and January 9, 2026. (Mintesnot Decl. ¶ 3.) Defendant also states that, on the first three dates, counsel was informed the depositions could not go forward, and that on the fourth date counsel was informed Martinez could not be located. (Mintesnot Decl. ¶ 4.) Defendant did not submit the deposition notices, proofs of service, certificates of nonappearance, or correspondence confirming what occurred on each date. On this record, the Court cannot find that Martinez failed "to submit to an authorized method of discovery" within the meaning of Code of Civil Procedure section 2023.010, subdivision (d). Nor has the Court issued an order compelling Martinez's appearance, so the record does not show disobedience of a discovery order under section 2023.010, subdivision (g).

Dismissal is not proportional to this showing. Defendant has not first obtained an order compelling Martinez's deposition or any lesser discovery sanction. Although Defendant asserts prejudice because it has been unable to complete Martinez's deposition, that prejudice supports a motion to compel or other calibrated discovery relief, not dismissal on the present record. The Court finds terminating sanctions are not warranted. (Code Civ. Proc., § 2023.030, subd. (d)(3); *R.S. Creative, Inc.*, *supra*, 75

Cal.App.4th at pp. 495-497.)

CONCLUSION

Defendant's Motion to Dismiss is Denied.